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A California governor candidate's antisemitic statement printed in election materials spurs calls for laws to change

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A California candidate for governor's antisemitic statement was published in the official voter information guide, both online and in print, mailed to millions of voters.

The candidate statement from no party preference contender Don J. Grundmann — one of 61 candidates who qualified for the ballot in the gubernatorial race — espoused conspiracy theories linking Israel to the murder of conservative activist Charlie Kirk last year and to the Sept. 11, 2001, terrorist attack.

The candidate statement was the only one with a disclaimer: "The views and opinions expressed by the candidates are their own and do not represent the views and opinions of the Secretary of State's office," it read.

Candidates who accept voluntary spending limits — for the governor's race, that's about $11.7 million in the primary election — are allowed to purchase space to make a statement, up to 250 words, in the state's official voter guide. If a candidate does not agree to the spending limit, then they cannot purchase the space.

Candidate statements, as instructed by guidelines, are not supposed to refer to another candidate. And they "shall be limited to a recitation of the candidate's own personal background and qualifications."

"Preventing racism and discrimination has been a cornerstone of Secretary Weber's life's work. As a constitutional officer, she is bound to operate in adherence with the law, which currently only allows the state to reject candidate statements if they reference a candidate's opponent," a statement attributed to Secretary of State Shirley Weber's press team said.

"Candidate statements are closely reviewed by a team of state legal professionals to ensure compliance with law," the statement continued, noting that candidate statements were displayed online and could have been disputed during a 20-day review period.

No challenges were raised during that time, the press team said.

The press team did not address specific questions about whether the voter guide would be reprinted or if Grundmann's statement would be removed from the online version. As of Friday afternoon, it remained online.

"The Secretary and her staff continue to work closely with the Legislature to explore possible solutions, so our systems reflect the inclusive values of our state," the statement continued. "We encourage anyone with concerns to contact their state legislative representatives to ensure they receive as much constituent input as possible as laws are proposed and updated."

Members of the California Legislative Jewish Caucus said they are already discussing legislative ways to address what can be included in the state's official election materials.

"We were outraged to learn that the Official Voter Information Guide for the California Primary ... includes antisemitic conspiracy theories and links to websites with horrific racism, homophobia and misogyny," said Assemblymember Jesse Gabriel, D-Encino, chair of the caucus.

"This is dangerous, deeply offensive and antithetical to California's proud tradition of standing up to hate," Gabriel said, noting legislators have been in contact with the governor's office to address the issue as well.

Assemblymember Gail Pellerin, who chairs the Assembly Elections Committee, said she rejected "numerous" candidate statements during her 27 years as a county elections official when they did not comply with requirements restricting them to be about the candidate's background and qualifications.

"The antisemitic statement included in the state voter information guide is reprehensible," said Pellerin, D-Santa Cruz. "It does not reflect California's values and has no place in voter resources produced and distributed by the state. I will work with my colleagues to advance legislation that ensures that this kind of content never appears in official election materials again."

While the voter guide cannot be undone, a coalition of Jewish organizations has asked the secretary of state's office for an explanation of how it was approved to be printed and assurances that similar statements would be blocked in the future, Joey Good, a senior director at the Jewish Federation of Orange County, said in an interview.

"We recognize that candidates retain broad rights to express their views in public discourse. At the same time, courts have consistently affirmed that the government may impose reasonable, viewpoint-neutral restrictions in nonpublic forums such as official publications," said the letter from the Jewish Federation of Orange County, ADL Orange County/Long Beach, Jewish Community Action Network and Israeli American Council.

"It's shocking — at a time when antisemitism is on the rise and antisemitic attacks are the highest they've ever been year over year in California — that a statement like this could be printed up in a primary election voter guide," Good said. "It's shocking and sad that it wasn't flagged or that somebody didn't stop and consult their own guidelines."

This isn't the first time that a candidate statement from Grundmann has caused issues.

In 2018, then a candidate for a U.S. Senate seat, Grundmann's candidate statement said, "There is no such thing as transgender. … What does exist are broken people who pretend to be the opposite sex and even mutilate themselves in the attempt."

Grundmann did not immediately respond to a request for comment.

Staff writer Linh Tat contributed to this report.

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